

SENATE BILL 1971

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 7;
Title 8; Title 38; Title 50; Title 62 and Title 66,
relative to the Tennessee Private Workplace Due
Process and Warrant Protection Act.

WHEREAS, the General Assembly finds that:

- (1) Private businesses and workplaces are protected under the Fourth Amendment to the United States Constitution and Article I, Section 7 of the Tennessee Constitution;
- (2) Government entry into non-public areas of a private workplace without consent or a judicial warrant constitutes a search;
- (3) Business owners and employees are often pressured to permit entry by armed officials despite having legal authority to refuse; and
- (4) Tennessee has a compelling interest in protecting property rights, preventing coercive enforcement tactics, and ensuring lawful process; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, is amended by adding the following new chapter:

38-4-101. Short title.

This chapter is known and may be cited as the "Tennessee Private Workplace Due Process and Warrant Protection Act."

38-4-102. Chapter definitions.

As used in this chapter:

(1) "Federal immigration authority" means any federal agency or officer engaged in the civil enforcement of federal immigration law, including United States immigration and customs enforcement;

(2) "Judicial warrant" means a warrant issued by a federal or state judge or magistrate based on probable cause and specifically authorizing entry into a private workplace;

(3) "Private workplace" means any business location, facility, or property not open to the general public, including non-public work areas; and

(4) "State assistance" means the use of state or local personnel, facilities, equipment, funds, databases, or participation in enforcement activity.

38-4-103. Warrant requirement for workplace entry.

(a) A state or local law enforcement agency shall not assist, participate in, or facilitate any immigration enforcement action within a private workplace unless the enforcing authority presents a valid judicial warrant authorizing entry.

(b) An administrative warrant, civil detainer, or notice issued by a federal immigration authority does not satisfy the requirements of this section.

(c) An employee of a private workplace without actual authority over the premises cannot consent to an enforcement action within a private workplace. Any such consent is invalid.

38-4-104. Protection of business owners and employees.

(a) A business owner, manager, or employee shall not be penalized, cited, or sanctioned under state or local law for refusing entry to a federal immigration authority absent a judicial warrant.

(b) A state or local agency shall not retaliate against a business for exercising rights under this chapter.

38-4-105. Prohibition on state resource use.

A state or local agency shall not:

- (1) Provide access to non-public business areas;
- (2) Provide employee records or schedules; or
- (3) Participate in questioning, detaining, or escorting individuals within a private workplace for immigration enforcement purposes absent a judicial warrant.

38-4-106. Notice of rights.

The department of labor and workforce development shall develop and distribute a model workplace notice informing businesses and employees of their rights under this chapter, including the right to refuse entry absent a judicial warrant.

38-4-107. Enforcement and remedies.

- (a) Evidence obtained in violation of this chapter is inadmissible in any state or local court proceeding.
- (b) A business or individual aggrieved by a violation of this chapter may seek declaratory or injunctive relief.
- (c) This chapter does not create criminal liability for any law enforcement officer.

38-4-108. Construction.

This chapter does not:

- (1) Prohibit federal immigration enforcement conducted pursuant to a valid judicial warrant;
- (2) Regulate federal officers directly; or
- (3) Limit enforcement actions in areas of a business that are open to the general public.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.